ECHA
EUROPEAN CHEMICALS AGENCY

Forum for exchange of information on enforcement

Pilot project report on:

enforcement of restrictions of PFCAs and related substances focusing on cosmetics

adopted 25 October 2024

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Version	Changes	
1.0		First edition

FORUM PROJECT REPORT
Enforcement of restrictions of PFCAs and related substances focusing on cosmetics
Reference: ECHA-24-R-10-EN
ISBN: 978-92-9468-405-9
Cat. Number: ED-01-24-009-EN-N
DOI: 10.2823/3449060
Publ.date: October 2024
Language: EN

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List of abbreviations

Word	Explanation
CPNP	The Cosmetic Products Notification Portal
D4	Cyclotetrasiloxane
D5	Cyclopentasiloxane
D6	Cyclohexasiloxane
ECHA	European Chemicals Agency based in Helsinki, Finland
EEA	European Economic Area
EU	European Union
INCI name	INCI names (International Nomenclature Cosmetic Ingredient) are systematic names internationally recognized to identify cosmetic ingredients.
ICSMS	The internet-supported Information and Communication System on (pan-European) Market Surveillance. An IT platform to facilitate communication between market surveillance bodies in EU and EFTA (the European Free Trade Association) countries. It shares information on products especially on non-compliant ones.
MS	Member States belonging to the EEA
NEA(s)	National enforcement authority(-ies)
POP	Regulation (EC) No 2019/1021 of the European Parliament and of the Council of 20 June 2019 on persistent organic pollutants (POPs)
PFCA	Perfluorocarboxylic acids (C9-C14)
PFOA	Perfluorooctanoic acid
PFOS	Perfluorooctane sulfonic acid
REACH	Regulation (EC) No 1907/2006 of the European Parliament and of the Council of 18 December 2006 concerning the Registration, Evaluation, Authorisation and Restriction of Chemicals (REACH)
REACH Annex XVII	Annex XVII to REACH: restrictions on the manufacture, placing on the market and use of certain dangerous substances, mixtures and articles
SDS	Safety Data Sheet
UVCB	Unknown or variable composition, complex reaction products or of biological materials

1. Executive summary

The European Chemicals Agency's Forum for Exchange of Information on Enforcement (Forum) has finalised its pilot project that focused on the enforcement of PFCAs and related substances, including PFOA and D4/D5 mainly in cosmetic products.

The project contributes to the harmonised enforcement of integrated control of chemicals in cosmetic products with respect to:

a. POPs Regulation (Annex I restrictions)
b. REACH Regulation (Annex XVII restrictions)

This was an EU enforcement project inspecting 4686 products between November 2023 and April 2024 in 13 Member States[1].

The overall non-compliance rate was 6.1%. Most of the inspections were on cosmetic products which had a non-compliance rate of 6.4%. The inspections were mainly done by checking the ingredients list online or on the packaging for INCI names of the restricted substances. The most non-compliant restricted substances identified were perfluorononyl dimethicone and cyclopentasiloxane (D5) (in wash-off cosmetic products).

[1] In this report a reference to 'Member States' will cover the countries that are either one of the 27 EU Member States or one of the EEA countries. See Section 3.2. for the participating countries in the pilot project.

2. Introduction

The Forum pilot project was carried out with the aim of enforcement on restricted substances under both the POPs and REACH Regulations mainly in cosmetic products[2] but also in other products.

The project covered:

- Enforcement of POPs Annex I restrictions on PFOA[3] in cosmetic products,
- Enforcement of REACH Annex XVII PFCAs (entry 68)[4] and D4/D5 (entry 70) restrictions applicable to cosmetic products. The entry 70 restricts D4 and D5 in wash-off cosmetics.

Main target were companies that import or formulate cosmetic products to be sold in the EEA. Distributors of cosmetic products were also in the scope of this pilot project.

The project was focused on consumer products (cosmetics) but also covered products for professional use.

Every NEA was free to select the cosmetic products they wished to check within the project for a different restricted substance and the associated legal requirements. The check was mainly done based on the ingredients labelled on the cosmetic products themselves or on the website of the selected product. Another option was to use laboratory tests to check for the presence of the restricted substances.

Even if the focus of the project was on cosmetic products, it was up to the participating country to decide if they wanted to check and report these restricted substances in any other mixture or article.

The operational phase of the project ran from November 2023 to April 2024. The participating countries were supported by the Forum Working Group.

[2] Regulation (EC) No 1223/2009 of the European Parliament and of the Council of 30 November 2009 on cosmetic products (OJ L 342, 22.12.2009, p. 59) is out of the scope of the project.
[3] Including PFOA salts and related substances
[4] Including C9-C14 PFCA salts and related substances

3. Results

3.1. General overview

The Forum has finalised its pilot project that focused on the enforcement of restricted substances under both the POPs and REACH Regulations mainly in relation to cosmetic products. For the POPs Regulation, the checks focused on PFOA, its salts, and related substances as restricted under Annex I. Under the REACH Regulation, the checks targeted C9-C14 PFCAs, their salts, and related substances restricted under entry 68, as well as D4 and D5 restricted under entry 70. The project covered 13 participating countries encompassing 4686 checked products from 345 companies. Of these, 4478 were cosmetic products and 208 were other types such as detergents and cleaning products.

A total of 285 non-compliant products were reported in the project[5], resulting in a non-compliance rate of 6.1% from all inspected products (cosmetic and other products).

All the non-compliances were found in cosmetic products (4478), accounting for a non-compliance rate of 6.4% in this category of products. In the project, the reporting was done per product, which, for example, could include several shades or colour variants of a product (all different shades/colours of a product were counted as one single product). Of the 4478 cosmetic products inspected, 4434 were checked for restricted substances under REACH and 3761 under POPs (most of the products were checked for potential non-compliance with both, POPs and REACH).

The following chapters present the detailed results of the project.

Since no non-compliance was found in product categories other than cosmetics the project report focuses on cosmetic products.

3.2. Participating countries

A total of 13 countries participated in the pilot project (Austria, Denmark, Germany, Finland, Iceland, Italy, Lichtenstein, Lithuania, Luxembourg, Malta, Norway, Romania, Sweden).

The non-compliance rate found in the different MS varied greatly, between 0 and 52.6%. This difference can be attributed to the different methodologies used by the MS for identifying products to check. As an example, one MS checked 54% of all cosmetic products inspected in this project and found 3.5% of the products non-compliant while another MS checked just 15% and found 60.4% of them to be non-compliant.

Another aspect affecting the results might be the influence of campaigns by other institutions e.g. NGOs which were running prior to or in parallel with the pilot project.

To identify the restricted substances different approaches were also possible, with the most common being checking the ingredients listed on the label of the product as well as on the company's website.

Table 1 presents an overview of the methods used for checking for the presence of restricted substances in all products checked (cosmetic and other products) while Table 2 presents the figures related to methods used when non-compliances were found.

[5] Additional cases were reported for non-compliance but they were not considered for this report as their non-compliance could not be related to the scope of this project (REACH/POPs restrictions).

Table 1: Overview of methods used to check for the presence of restricted substances for all inspections[6].

Method used to check	%
a) based on the information available on the label of the product	83
b) based on the information available on the website for the product	43
c) based on chemical analysis initiated by the authority[7]	4
d) based on the information available in the database for cosmetics (CPNP)	13
e) based on the information in additional online databases or applications	19
f) based on the information provided in Annexes 5-8 (e.g. decision tree) to this manual	13
g) other (e.g. SDS)	33

As can be seen from the Table 2 below the use of the company websites seems to be the most effective way of finding non-compliant products.

Table 2: Overview of method used to check for the presence of restricted substances in cosmetic products for cases when non-compliances were found[8].

Method used to check	%
a) based on the information available on the label of the product	42
b) based on the information available on the website for the product	92
c) based on chemical analysis initiated by the authority[9]	2
d) based on the information available in the database for cosmetics (CPNP)	14
e) based on the information in additional online databases or applications	13
f) based on the information provided in Annexes 5-8 (e.g. decision tree) to this manual	13
g) other (e.g. IT tools)	9

3.3. Type of product inspected

All non-compliant substances were found in cosmetic products and constitute mixtures in terms of REACH legislation.

Regarding D4 and D5 substances the corresponding products had to fulfil the criteria of being wash-off cosmetic products in the terms of REACH restrictions.

[6] Multiple options were possible.
[7] Chemical analyses were conducted on a voluntary basis by the NEAs in the context of this project.
[8] Multiple options were possible.
[9] Chemical analyses were conducted on a voluntary basis by the NEAs in the context of this project.

The company names, brands, types (e.g. conditioner, lipstick) and all other identifiers of the non-compliant cosmetic products were not reported for this project.

3.4. The role of the inspected companies for non-compliant cosmetic products found

The main identified role of the inspected companies was as distributors or else the role was 'not-known'. The high number for the role 'not-known' amongst the companies was a result of the type of inspections carried out (online inspections) and because there was no requirement to find out the role for the efficient enforcement of the regulations.

There were several cases where two or three roles were indicated for the same company. One company could have also had several non-compliant products.

Table 3: The role of the inspected company for non-compliant cosmetic products found.

Role	Total
Importer	4
Formulator	16
Distributor	98
Marketplace	57
Not known	130
Total	**305**

3.5. Non-compliant substances

A total of six different restricted substances were found in 285 non-compliant products. Table 4 below shows the substances identified in the project and the number of non-compliant products containing these substances. A total of 9 products contained more than one restricted substance (e.g. D5 together with D4). The most frequently found substances were perfluorononyl dimethicone and cyclopentasiloxane (D5).

Perfluorononyl dimethicone is covered by both the PFOA restriction in POPs and the C9-C14 PFCAs restriction in REACH. Perfluorononyl dimethicone is a siloxane polymer having a C9-perfluorinated side-chain. Based on its chemical structure, the substance is a PFOA- and C9-C14 PFCA- related substance according to the chemical definitions in the corresponding restrictions.

Cyclopentasiloxane (D5) is covered by restriction entry 70 of Annex XVII of REACH for D4 and D5.

Table 4: Restricted substances identified during the project and number of non-compliant products[10].

Restricted substance	Number of non-compliant products	Legal provisions
Perfluorononyl dimethicone	151[11]	REACH - Entry 68 POP - PFOA
Cyclopentasiloxane (D5)	111	REACH - Entry 70
Cyclomethicone (a blend of D4, D5 and D6)	12	REACH - Entry 70
Cyclotetrasiloxane (D4)	11	REACH - Entry 70
Perfluorooctylethyl triethoxysilane	5	REACH - Entry 68 POP - PFOA
Perfluorononylethyl carboxydecyl PEG-10 dimethicone	4	REACH - Entry 68 POP - PFOA

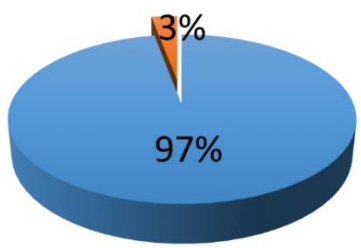
3.6. Infringements and enforcement measures

3.6.1. Infringements

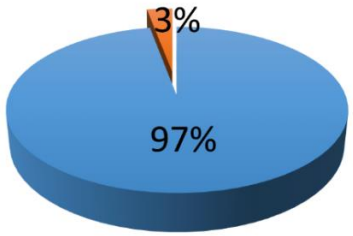
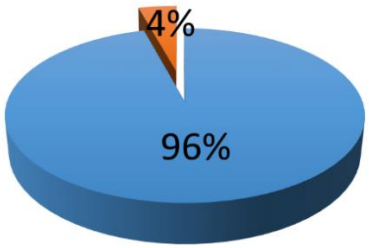
Regarding the POPs/REACH restrictions checked in the scope of the pilot project, at least one non-compliant substance was found in 285 of the 4478 inspected cosmetic products. This results in a non-compliance rate of 6.4%.

All non-compliances and their relation to different provisions of the POPs/REACH Regulations in the scope of this pilot project are presented in Table 5 (Note that double violations were possible for the inspected cosmetic products).

Table 5. Non-compliances with POPs/REACH restrictions [%] or overall

Legislation	Provision	Number		%
REACH	PFCA (Annex XVII, Entry 68)	# products checked	4434	
		# non-compliances found	147	

[10] In one cosmetic product there might be more than one restricted substance.
[11] Different limit values apply or REACH and POPs Regulations. Not all 151 cases were non-compliant with REACH.

Legislation	Provision	Number		%
REACH	D4 and D5 (Annex XVII, Entry 70)	# products checked	4434	
		# non-compliances found	134	
POP	PFOS and PFOA (Annex I)	# products checked	3761	
		# non-compliances found	166	

3.6.2. Enforcement measures and follow-up activities

During inspections a total of 285 non-compliant products were detected. For most of these products enforcement measures were imposed by the enforcement authorities. It is important to clarify that multiple measures per case could have been taken by the enforcement authorities. The most applied enforcement measure was the issuance of written advice (in 80% of the cases where breaches were noticed). This suggests an approach by authorities in guiding duty holders to compliance without resorting to more severe punitive actions, or voluntarily actions were taken by the companies themselves (i.e. effective enforcement). See Table 6 below for an overview of the enforcement measures applied.

Enforcement authorities issued administrative orders in 6% of the non-compliant cases, implying that more formal and legally binding actions were required to address non-compliance. Examples of other measures taken by the authorities were – examples given – forwarding the case to the member state of the producer, conducting chemical analysis to determine limit values or forwarding the case internally to another federal enforcement agency.

Table 6. Overview of the enforcement measures taken by inspectors (per product).

Enforcement measures	Number of cases
Verbal advice	5
Written advice	228
Administrative order	18
Fine	0
Criminal complaint / handing over to public prosecutor's office	15
Other:	19
No enforcement actions were initiated yet	30

For 30 non-compliant products there were no enforcement actions initiated as yet since e.g.:

a) the company voluntarily initiated actions from their side and a withdrawal from the market,
b) the investigation was still ongoing at the time of the reporting,
c) the restricted substance was found on the label, but no laboratories could be identified which were able to perform the analysis for the restricted substance, which was a requirement for further enforcement actions.

For a significant number of cases (137), on-going operations were reported at the time of filing this report (48%). Roughly half of the cases had been closed by that time (148 cases, 52%).

4. Discussion, conclusions and recommendations

Based on the analysis of the data received, the following conclusions and recommendations can be drawn from the project.

4.1. Discussion and conclusions

The POPs and REACH restrictions on PFCAs that were checked in this project cover PFOA, C9-C14 PFCAs, their salts and related substances. The corresponding restriction entries define C9-C14 PFCA and PFOA related substances as substances that, based on their molecular structure, are considered to have the potential to degrade or be transformed to C9-C14 PFCAs or PFOA. Therefore, hundreds of chemicals are covered by the scope of the restrictions, and only non-exhaustive lists of the restricted substances are available (based on EC or CAS numbers).

The check of restricted groups of substances, which are based on their chemical structure, imposes a high workload for both enforcement as well as the implementation of the obligations by industry.

Enforcement issues for per- and polyfluorinated restricted substances identified in this pilot project were:

- Regarding borderline cases the proper assignment based on the INCI names originating from Cosmetics Regulation to REACH related substance identifiers (CAS/EC numbers) demonstrates a challenge.
- The conversion of the substance name to its chemical structure requires detailed information and chemical understanding in order to enforce the restrictions. These resources may be limited within the NEAs.
- In some cases it is not possible to know whether the substance is restricted only based on the INCI name.
- Some companies were not aware that the substances in their products were restricted.
- Some of the related substances fall under both restrictions, which may complicate understanding (e.g. different given limit values).

Enforcement issues for D4 and D5 restricted substances identified in this pilot project were:

- In contrast to REACH restrictions D4 is prohibited under the Cosmetics Regulation, but D5 is not, which may complicate understanding.
- D4 and D5 are only restricted in wash-off cosmetic products, but there is not a clear definition of wash-off (e.g. according to use description the same product can be compliant or non-compliant).

Additionally, the definition of placing on the market differs between the regulations (POPs/REACH and Cosmetics). In POPs and REACH Regulations the restriction applies at all levels of the supply chain after the Regulation is implemented compared to the Cosmetics Regulation where prohibited substances can be sold if the product was placed on the market before the ban came into place.

The pilot project helped tackle these issues (e.g. the creation of an internal substance lists based on the INCI names) with a dedicated group of experts helping the NEAs with the preparatory work aiming at efficient and harmonised enforcement.

The non-compliance level of 6.4% is comparable with the REF-10 project results where the non-compliance level for mixtures was 9%[12]. It is important to highlight that, in many cases,

[12] REF-10 project report on integrated chemical compliance of products

the selection of products in these projects was not random, but based on a risk-based approach and the results regarding non-compliance do not therefore represent a general overview of all products available on the market. This is important to bear in mind when analysing the findings of this project.

4.2. Recommendations

Based on the findings of the project and the conclusions drawn, the following recommendations are addressed to the different actors with certain levels of responsibility in the implementation of the legislation related to this project (industry/duty holders, consumers, the European Commission, the inspectors and the ECHA Forum).

4.2.1. Recommendations to industry/duty holders.

1. Industry, economic actors and responsible persons for cosmetic products should pay attention and help raise the awareness of the members that import, manufacture or sell cosmetic products that they have to follow not only the provisions of the Cosmetics regulation but also those of POPs and REACH. Current regulatory developments concerning substance classes (i.e. per- and polyfluorinated compounds and D4/D5/D6) should be followed carefully.

2. Industry should use substance identifiers (e.g. CAS, EC) that reflect accurately the composition of their manufactured substances. This is especially relevant for UVCBs.

3. Formulators of cosmetic products are advised to carefully check Section 15 of the SDS regarding the presence of restricted substances.

4. Companies selling cosmetic products are recommended to use ECHA CHEM to help them identifying whether their products contain restricted substances.

5. Industry should be aware that the definition of placing on the market differs between the regulations (POPs/REACH and Cosmetics).

4.2.2. Recommendations to consumers

1. Publicly available databases may be a source to find products that contain the relevant restricted substances. However, it is important that these databases are up-to-date.

2. Consumers are advised to check the list of ingredients on product labels. When checking the ingredients list consumers should focus on checking for Perfluorononyl dimethicone and Cyclopentasiloxane (D5) in wash-off cosmetic products (the highest non-compliance rate was found for these two substances in this project).

3. Consumers should be aware that the restricted substances were found in different types of cosmetic products, sellers and any price range.

4.2.3. Recommendations to the European Commission

1. Regarding structure-based group restrictions it will be necessary to provide further assistance to enforcement as well as duty holders in terms of which substances are covered by the restriction. This may be achieved by guidance, demonstrative substance lists or similar supporting documents.

2. To enable efficient enforcement in all MSs it is recommended to establish sufficient testing facilities within the European Union such as a European Testing Facility with the capability of conducting analyses for restricted per- and polyfluorinated substances.

4.2.4. Recommendations to the inspectors

1. Continue enforcing restricted substances in cosmetic products, especially when new restrictions come into effect such as the restriction for D4/D5/D6.

2. Cooperate with other authorities responsible for the Cosmetics Regulation when inspecting borderline products.

3. Regarding notes on compliance, it is important to point out, that this only refers to POPs/REACH compliance. Other regulations may be applicable and the product can be found non-compliant by other authorities.

4. The exchange of cases between MSs may be of high importance. The use of the ICSMS system is highly recommended especially for non-compliant cases.

5. Regarding notes on non-compliance, it is important to point out that the POPs/REACH restrictions apply on all levels on the supply chain from the time when the restriction becomes mandatory (consequence: immediate withdrawal of the product).

6. Proper preparation of enforcement actions is highly recommended (e.g. the creation of an internal substance list).

4.2.5. Recommendations to the ECHA Forum

1. Consider running a new project on cosmetic products checking per- and polyfluorinated compounds and D4, D5 and D6 especially when new restrictions come into force.

2. Consider developing enforcement practices for structure-based restrictions and provide training for inspectors of the MSs.

3. To exchange practices, substances lists and concerted actions may support local NEAs in enforcing these kinds of restrictions.

5. Annex

Annex I - Project questionnaires

There are 2 questionaries (A and B) to this project.

The reason for this is to not overburden the inspectors with reporting on quick checks of the label of compliant products but at the same time getting the data needed to do analyses for the project questionnaire report.

Questionnaire **A** is on reporting non-compliant products. Please fill in **one questionnaire per non-compliant product.**

Questionnaire **B** is on reporting on the total number of checks done per company/store during one inspection.

The questionnaires are intended only for use by enforcement authorities and **shall not be distributed to companies inspected.**

The information requested in questions 0.2, 0.3, 0.4 and 4.2 and 4.3. (in Questionnaire A) and in questions 0.2, 0.3, 0.4 and 0.5 (in Questionnaire B) is only for internal use in the NEA or MS (e.g., in case you need to forward the questionnaire to other NEAs for assistance). In case this information is not removed from the online version of the questionnaire (EU Survey tool) before the electronic submission of the form, these data will be available to the ECHA Focal point in HET and later on to the NC. Therefore, please verify in advance if you are authorised to send any information requested in these questions and remove it from the questionnaire before sending it to the ECHA Focal point if you do not want this information to be available to other parties.

Explanation regarding the symbols used in Annex 1.
* - means that the answer to the question in the EU Survey is mandatory
◯ - means 'Single choice' option
☐ - means 'Multiple choice' option

Forum Pilot project on enforcement of restrictions of PFCA and related substances focusing on cosmetics QUESTIONNAIRE A

One non-compliant product per questionnaire

Section 0: General information about the inspection

* **0.1** Participating country:	
* **0.2** Name of the authority:	This data is only for internal use.
* **0.3.** E-mail address (inspector):	This data is only for internal use.
* **0.4** File reference	This data is only for internal use NEA Internal reference number e.g., inspector No., case No. etc

Section 1 – Product level questions

I. Product identifier	
1.1 EAN / GTIN No./Barcode / Item number **1.2** URL address * **1.3.** Product name	EAN = European Article Number GTIN = Global Trade Item Number This data is only for internal use.
* **1.4** The product is a: ◯ Substance ◯ Mixture ◯ Article	
* **1.5** Type of product ◯ cosmetics ◯ Other ◯1.5.1 Please specify your answer - Other"	
* **1.6** The product was checked (multiple responses are possible) (please choose relevant): ☐ a) based on the information available on the label of the product ☐ b) based on the information available on the website for the product ☐ c) based on chemical analysis initiated by the authority (voluntary) Note for 1.6.c) Also includes the option that the chemical analysis has been carried out by a laboratory 1.6.c.1. Please indicate what method was used: ☐ d) based on the information available in database for cosmetics (CPNP) ☐ e) based on the information in the additional online databases or applications ☐ f) based on the information provided in Annexes 5-8 (e.g. decision tree) to this manual ☐ g) other 1.6.g. Please specify:	*Multiple choice* The cosmetic regulation defines in Article 19 (g) how the list of ingredients need to be reported in cosmetic products. https://ec.europa.eu/growth/tools-databases/cosing/ It is not a legal obligation to have ingredients available on the website but is common that the information is available there.

II – Non-compliant substance

1. Please indicate the non-compliant substance found:

	INCI name	Chem/IUPAC Name / Description
☐	C9-15 FLUOROALCOHOL PHOSPHATE	Perfluoro-C9-15-alkanol, esters with phosphoric acid
☐	PERFLUORONONYL DIMETHICONE	Siloxanes and silicones, dimethyl, 3-(nonadecafluorononyl)propyl methyl
☐	AMMONIUM C6-C16 PERFLUOROALKYLETHYL PHOSPHATE	Phosphoric acid, esters with 2-(perfluoro-C6-16-alkyl)ethanol, ammonium salt
☐	PERFLUORONONYLETHYL CARBOXYDECYL PEG-10 DIMETHICONE	Siloxanes and Silicones, 11-(2-(nonafluorononyl)ethoxy)-11-oxoundecyl methyl, 3-hydropoly(oxyethylene)oxypropyl methyl, dimethyl (10 mol EO average molar ratio

Prioritisation of the substances according to the frequency of occurrence in cosmetic products.
For more information on the substances please check Annex 4.

☐	AMMONIUM C9-10 PERFLUOROALKYLSULFONATE	C9-10 alkanes, perfluoro-, sulfonic acid, ammonium salts	Inspectors can look for the following keywords when checking the list of ingredients reported in the product label: 'perfluorononyl' 'perfluorooctyl' 'perfluoroalkyl' to identify whether the product would contain PFOA or C9-C14 PFCA related substances. The majority of cosmetic ingredients included in Annex 4 contain these text fragments in the INCI name.
☐	PERFLUOROOCTYLETHYL TRIETHOXYSILANE	Silane, triethoxy(3,3,4,4,5,5,6,6,7,7,8,8,9,9,10,10,10-heptadecafluorodecyl)-	
☐	PERFLUOROOCTYLETHYL TRIMETHOXYSILANE	Silane, trimethoxy(3,3,4,4,5,5,6,6,7,7,8,8,9,9,10,10,10-heptadecafluorodecyl)-	
☐	PERFLUOROOCTYLETHYL TRISILOXANE	Trisiloxane, 2-(3,3,4,4,5,5,6,6,7,7,8,8,9,9,10,10,10-heptadecafluorodecyl)-1,1,1,3,5,5,5-heptamethyl-	
☐	AMP-C8-18 PERFLUOROALKYLETHYL PHOSPHATE	AMP-C8-18 Perfluoroalkylethyl Phosphate is the aminomethylpropanol salt of a complex mixture of esters of phosphoric acid and a perfluoroalkylethyl alcohol containining 8 to 18 carbons in the alkyl chain.	
☐	C4-18 PERFLUOROALKYLETHYL THIOHYDROXYPROPYLTRIMONIUM CHLORIDE	1-Propanaminium, 2-hydroxy-N,N,N-trimethyl-, 3[(gamma-omega-perfluoro-C6-20-alkyl)thio] derivatives, chlorides	
☐	DEA-C8-18 PERFLUOROALKYLETHYL PHOSPHATE	Phosphoric acid, .gamma.-.omega.-perfluoro-C10-20-alkyl esters, compounds with diethanolamine	
☐	PERFLUORONONYL OCTYLDODECYL GLYCOL MEADOWFOAMATE	Fatty acids, meadowfoam, esters with 1-perfluorononyl-2-octyldodecyloxy-ethan-1,2-diol	
☐	PERFLUORONONYLETHYL CARBOXY PEG-7 DIMETHICONE PHOSPHATE	Perfluorononylethyl Carboxy PEG-7 Dimethicone Phosphate is the partial ester of phosphoric acid and a carboxylated derivative of perfluorononylethyl dimethicone containing an average of 7 moles of ethylene oxide	
☐	ACRYLATES/METHOXY PEG-23 METHACRYLATE/PERFLUOROOCTYL ETHYL ACRYLATE COPOLYMER	Copolymer formed of methoxy PEG-23 methacrylate, perfluorooctyl ethyl acrylate, and one or more monomers of acrylic acid, methacrylic acid or one of their simple esters	
☐	BEHENYL METHACRYLATE/PERFLUOROOCTYLETHYL METHACRYLATE COPOLYMER	Behenyl Methacrylate/Perfluorooctylethyl Methacrylate Copolymer is a copolymer of behenyl methacrylate and Perfluorooctylethyl Methacrylate monomers	
☐	BUTYL ACRYLATE/C6-14 PERFLUOROALKYLETHYL ACRYLATE/MERCAPTOPROPYL DIMETHICONE COPOLYMER	Butyl Acrylate/C6-14 Perfluoroalkylethyl Acrylate/Mercaptopropyl Dimethicone Copolymer is a copolymer of 2-(perfluoro(C6-14 alkyl)) ethyl acrylate, n-butyl acrylate and mercaptopropyl dimethicone monomers	
☐	C20-28 ALKYL PERFLUORODECYLETHOXY DIMETHICONE	C20-28 alkyl perfluorodecylethoxy dimehticone	
☐	C4-14 PERFLUOROALKYLETHOXY DIMETHICONE	Siloxanes and Silicones, 3-(2-perfluoro-C4-14-alkylethoxy)propyl methyl, dimethyl	
☐	C6-12 PERFLUOROALKYLETHANOL	Perfluoro-C6-12-alkyl ethanol	
☐	C6-14 PERFLUOROALKYLETHYL ACRYLATE	C6-14 Perfluoroalkylethyl Acrylate is the ester of Acrylic Acid and a mixture of fluorinated alcohols containing 6 to 14 carbons in the alkyl chain.	
☐	C6-14 PERFLUOROALKYLETHYL ACRYLATE/HEMA COPOLYMER	C6-14 Perfluoroalkylethyl Acrylate/HEMA Copolymer is a copolymer of 2-(perfluoro(C6-14 alkyl)) ethyl acrylate and 2-hydroxyethyl methacrylate monomers	
☐	ISODODECYL/PERFLUORONONYLETHYL DIMER DILINOLEATE/CITRATE	Isododecyl/Perfluorononylethyl Dimer Dilinoleate/Citrate is a mixture of esters formed by the reaction of Dilinoleic Acid and Citric Acid with Isododecanol and perfluorononyl ethyl alcohol	
☐	PERFLUOROCAPRYLYL TRIETHOXYSILYLETHYL METHICONE	Silicones and siloxanes, 3-(perfluorooctyl)propyl methyl, 3-(triethoxysilyl)propyl methyl, trimethylsilyl terminated	
☐	PERFLUORONONYL DIMETHICONE/METHICONE/AMODIMETHICONE CROSSPOLYMER	Perfluorononyl Dimethicone/Methicone/Amodimethicone Crosspolymer is a crosslinked silicone polymer that is formed by reacting a copolymer of Perfluorononyl Dimethicone and Methicone with Methicone and Amodimethicone	
☐	PERFLUORONONYL OCTYLDODECYL GLYCOL GRAPESEEDATE		
☐	PERFLUORONONYLETHYL CARBOXYDECYL BEHENYL DIMETHICONE	Siloxanes and Silicones, 11-(2-(nonafluorononyl)ethoxy)-11-oxoundecyl methyl, docosyl methyl, dimethyl	
☐	PERFLUORONONYLETHYL CARBOXYDECYL HEXACOSYL DIMETHICONE	Siloxanes and Silicones, 11-(2-(nonafluorononyl)ethoxy)-11-oxoundecyl methyl, hexacosyl methyl, dimethyl	
☐	PERFLUORONONYLETHYL CARBOXYDECYL LAURYL DIMETHICONE	Siloxanes and Silicones, 11-(2-(nonafluorononyl)ethoxy)-11-oxoundecyl methyl, dodecyl methyl, dimethyl	
☐	PERFLUORONONYLETHYL CARBOXYDECYL LAURYL/BEHENYL DIMETHICONE	Siloxanes and Silicones, 11-(2-(nonafluorononyl)ethoxy)-11-oxoundecyl methyl, docosyl methyl, dodecyl methyl, dimethyl	
☐	PERFLUORONONYLETHYL CARBOXYDECYL PEG-8 DIMETHICONE	Siloxanes and Silicones, 11-(2-(nonafluorononyl)ethoxy)-11-oxoundecyl methyl, 3-hydropoly(oxyethylene)oxypropyl methyl, dimethyl (8 mol EO average molar ratio	
☐	PERFLUORONONYLETHYL DIMETHICONE/METHICONE COPOLYMER	Siloxanes and Silicones, 2-(nonafluorononyl)ethyl methyl, dimethyl. hydrogen methyl	

☐	PERFLUORONONYLETHYL PEG-8 DIMETHICONE	Siloxanes and Silicones, 2-(nonafluorononyl)ethyl methyl, 3-hydropoly(oxyethylene)oxypropyl methyl, dimethyl (8 mol EO average molar ratio	
☐	PERFLUORONONYLETHYL PEG-8 PHENYLISOPROPYL DIMETHCONE		
☐	PERFLUORONONYLETHYL STEARYL DIMETHICONE	Siloxanes and silicones, di-Me, Me perfluorononylethyl, Me stearyl	
☐	CYCLOTETRASILOXANE (D4)	D4 Octamethylcyclotetrasiloxane	
☐	CYCLOPENTASILOXANE (D5)	D5 Decamethylcyclopentasiloxane	
☐	CYCLOMETHICONE (a blend of D4, D5 and D6)	Cyclomethicone is a generic name for a mixture of cyclic dimethyl polysiloxane compounds that conform to the formula, where n has a value between 4 and 6.	
☐	Other		

* If other, please specify the substance (e.g. INCI name or other available identification number):

* 2.1 Please confirm that all relevant non-compliant substances were indicated under question 2.
☐ Yes

III. Summary/enforcement actions/enforcement measures taken	
* 3.1 Please specify regarding which obligations the product was non-compliant: ☐ POPs restrictions ☐ REACH restrictions	This question relates only to checks of POP Annex I restrictions and REACH Annex XVII.
* 3.2 Which type of enforcement actions were initiated when non-compliance was identified? (Please choose relevant.) ☐ No enforcement actions were initiated yet ☐ Verbal advice ☐ Written advice ☐ Administrative order ☐ Fine imposed ☐ Criminal complaint / handing over to public prosecutor's office ☐ Other: 3.2.1.a Please specify your answer other ☐ Follow up activities still on-going	*Multiple choice* Examples of public announcement is that the result of the non-compliant product and company is published in a report or in the NEA´s decision (order)

Section 2 - Company level questions

IV. Information of the identified company	
*** 4.1 The role of the inspected company?** (Please choose relevant.) ☐ Importer ☐ Formulator ☐ Distributor (in EEA) ☐ Market place ☐ Not known	*Multiple choice* If several companies are inspected for the same product – report only the highest in the supply chain (within your MS) Distributor includes retailer and wholesaler. Market place is a company that supplies (not sells) other sellers' products, like Amazon, E-bay etc. Note that some marketplaces have multiple roles. They could also be manufacturers, importers, or distributors for different products.
*** 4.2 Name of the inspected company**	This data is only for internal use.
4.3 Name of the company with the highest priority in the supply chain:	This data is only for internal use. Note that for same product many companies can be involved (e.g., distributor (retailer), supplier) – report only the highest in the supply chain.

V. Additional comments
5. Informal comments Please fill this section if you would like to inform on obstacles overcome, lessons learned, need for clarification/ harmonisation:

Forum Pilot project on enforcement of restrictions of PFCA and related substances focusing on cosmetics

QUESTIONNAIRE B

Total number of checks done per company/store

Section 0: General information about the inspection

* **0.1** Participating country:	
* **0.2** Name of the authority:	This data is only for internal use.
* **0.3** E-mail address (inspector):	This data is only for internal use.
* **0.4** File reference	This data is only for internal use. NEA Internal reference number e.g., inspector No., case No. etc.
* **0.5** Name of company/store:	This data is only for internal use.

Section 1: Total number of checks per company/store

*** 1. This section to be filled in by the inspector to collect data from one inspection**

Additional information. If you did not check the specific duty please insert 0.

	Total checks per type of product	Total checks per duty	
		POPs restrictions	REACH Restrictions
Cosmetics			
Other			

* **1.1** The products were checked (multiple responses are possible): ☐ a) based on the information available on the label of the product ☐ b) based on the information available on the website for the product ☐ c) based on chemical analysis initiated by the authority (voluntary) Note for 1.1.c) Also includes the option that the chemical analysis has been carried out by a laboratory 1.1.c.1. Please indicate what method was used: ☐ d) based on the information available in database for cosmetics (CPNP) ☐ e) based on the information in the additional online databases or applications ☐ f) based on the information provided in Annexes 5-8 (e.g. decision tree) to this manual ☐ g) other 1.1.g. Please specify:	*Multiple choice* The cosmetic regulation defines in Article 19 (g) how the list of ingredients need to be reported in cosmetic products. https://ec.europa.eu/growth/tools-databases/cosing/ It is not a legal obligation to have ingredients available on the website but is common that the information is available there.

2. Additional comments - to be filled in, if needed, by the inspector
Please fill this section if you would like to inform on obstacles overcome, lessons learned, need for clarification/ harmonisation:

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